

25STLC00778 25STLC00778

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-18

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Case Number: 25STLC00778 Hearing Date: August 18, 2026 Dept: 26

TENTATIVE RULING:

Defendant Lovepreet Kaur a/k/a LP Kaur's Motion for Leave to Amend and Substitute Correct Business Entity and Dismiss Individual Defendant is denied.

Analysis:

Plaintiff

National Commercial Recovery, Inc. ("Plaintiff")

brought this action for money,

common counts, and violation of the Perishable Agricultural Commodities Act against Defendants Absolute Dollar ("Defendant

Absolute Dollar"), Vivesh Kochher a/k/a Vish Kochher a/k/a Vesh Kochher a/k/a

Vivesh Kochhar ("Defendant Kochhar"), and Lovepreet Kaur a/k/a LP Kaur ("Defendant Kaur") on January 30, 2025.

Proofs of substitute service were

filed by Plaintiff on February 10, 2025. Following Defendants' failure to file a responsive pleading, the Court entered Defendants' defaults on March 18 and 20, 2025. Defendant Kaur filed an Answer on April 16, 2025 and a Motion to Vacate Default and Default Judgment on April 29, 2025. Default judgment was then entered against Defendants on May 20, 2025. Following transfer of the action to Department 26 at the Spring Street Courthouse, Defendant Kaur refiled the Motion to Vacate Default and Default Judgment and the Court granted it on August 11, 2025. (Minute Order, 08/11/25.)

On June 16, 2026, Defendant Kaur filed the instant

Motion for Leave to Amend and Substitute Correct Business Entity and Dismiss Individual Defendant. Plaintiff filed an opposition on August 5, 2026.

Discussion

The request for

leave to amend is brought pursuant to Code of Civil Procedure section 473, subdivision (a), which provides

that “[t]he court may, in furtherance of justice and on any terms as may be proper, allow a party to amend any pleading...” (Code Civ. Proc., § 473, subd.

(a)(1).) A motion for leave to amend a pleading must also comply with the procedural requirements of California Rules of Court, Rule 3.1324, which requires a supporting declaration to set forth explicitly what allegations are to be added and where, and when the new evidence was discovered warranting the amendment and why the amendment was not made earlier. The motion must also include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines of the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (Cal. Rules of Court, Rule 3.1324, subds. (a), (b).)

Defendant Kaur moves for an

order amending the Complaint to remove them from the action and substitute in a corporate entity, which they claim is the correct defendant. The Motion cites no legal authority that allows a party to amend the pleading of another party.

The statutory scheme under which the Motion is brought makes it clear that amendment is reserved to the pleading party. Code of Civil Procedure section 472 states in relevant part: “A party may amend its pleading once without leave of the court” (Code Civ. Proc., § 472, subd. (a).) It follows that section 473, subdivision (a), which pertains to leave to amend by order of the court, likewise pertains to the pleading party. It would make no sense to give the opposing party control over the pleadings in the way proposed by Defendant Kaur’s Motion. The appropriate means by which a responding party may object to a pleading is set forth in Chapter 3 of the Code of Civil Procedure.

Furthermore, Defendant Kaur

provides no declaration in compliance with California Rules of Court, Rule 3.1324. The supporting declaration does not explain what allegations are to be added and where, when the new evidence was discovered warranting the amendment, and why the amendment was not made earlier. The Court granted Defendant Kaur’s Motion to Vacate Default and Default Judgment more than a year ago, yet the instant

Motion to Amend only now seeks to challenge the allegations against them as an individual. Defendant Kaur provides no explanation for failing to demur to the Complaint, or failing to file a Motion for Summary Judgment in the year following their appearance in this action. Such a belated amendment, even if allowed to be sought by the responding party, would not be in furtherance of justice.

Conclusion

Defendant Lovepreet Kaur a/k/a LP Kaur's Motion for Leave to Amend and Substitute Correct Business Entity and Dismiss Individual Defendant is denied.

Plaintiff to give notice.